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In this case, plaintiff alleges that defendants negligently delivered their daughter causing the daughter to suffer permanent injury. The mother, Diana, also claims that defendants' actions caused injuries to her.

(The court uses first names due to the common surname to avoid confusion. No disrespect is

intended.) And the father, Joseph,

alleges that defendants were negligent as to him as well. Plaintiffs also sue the UC, which is the ultimately governing organization of the facility where the conduct occurred. Defendants demur to parts of the complaint. As to Diana's claim,

defendants contend that this is really a claim for medical malpractice, so the additional claim for negligence fails.

As to Joseph, defendants state that they owed him no duty directly

because he was not a patient, and that there is no "bystander liability" as to

him because defendants acts were not such that would give rise to liability in

that an ordinary person would not perceive the alleged negligent act. Defendants also state that the loss of consortium causes of action fail.

Finally, the UC contends that there is no basis for corporate liability

here under a negligent hiring or retention theory. Plaintiffs oppose.

The court turns first to the NIED claim. The court tends to agree with plaintiffs

here. The court's understanding is that

both parents were in the room when the events in question occurred. They were therefore in a position to observe what happened. The court agrees with the

defense that it is not enough that they saw a traumatic event that was allegedly mishandled. The court agrees that under Bird

v. Saenz (2002) 28 Cal.4th 910 and Ochoa v. Superior Court (1985) 39

Cal.3d 159, more is needed than that.

The court also agrees, at least for pleading purposes, with the

defense's characterization that the act has to be so bad that it is obvious to a layperson. In other words, there are difficult deliveries all the time; that is not enough for NIED. And a difficult delivery might be mishandled; but that, too, is not enough for NIED.

In order to state the tort, the doctors' actions must be such that the plaintiff knows that it is malpractice while it is going on. For example, seeing a newborn in obvious distress while the doctor is in the room watching the World Cup rather than attending to the newborn could do it. The problem is that the court here does not know enough of the specifics to know whether the actions were obvious malpractice or merely bad judgments that are only obvious with hindsight (or not bad judgments at all but rather a bad situation being handled as well as possible). Because the court cannot tell from the pleadings, the court cannot rule out NIED for either Diana or Joseph. Put another way, even if defendants did everything right, there would be emotional distress at the situation—just no liability. But it is also true that if defendants' conduct was so obviously improper that even a layperson would know that the malpractice is causing the severe injuries that the child suffered, then there is emotional distress and (at least potentially) NIED. Because the court cannot tell from the pleadings, the demurrer must be OVERRULED.

The same is true for loss of consortium.

The theory there is that both parents are so devastated that each is incapable of providing comfort and companionship to the other. That essentially stands or falls (at least in part) with the NIED and also with the evidence to be adduced. The demurrer is OVERRULED as to that theory as well. Finally, the UC's argument that it did nothing wrong in hiring or supervising the medical staff cannot be adjudicated this way. The court has no idea whether there were previous instances of obvious malpractice that went ignored or whether this is the first time—or even if there was any malpractice at all. The UC's demurrer is also OVERRULED. The court notes defendants' position that Diana's claim is really just one for medical malpractice and so the NIED cause of action is superfluous.

There is some appeal to that.

Diana was a patient and to the extent that her providers owed her a duty of care as such (and they did), the failure to meet the standard of care is medical malpractice. The issue is whether there are separate damages that Diana can seek for a breach of the duty of care that was not to her, but rather only to the child. It might well be that the answer is “no” and

that the only duty is the professional one, but the court is not sure that there was not a separate duty owed to the child, the breach of which—independent of any breach of the standard of care regarding Diana's treatment—could lead to damages. (By way of example, actions taken with regard to the child after the delivery might be one for which Diana cannot claim malpractice as to her.)

The bottom line is that these arguments cannot be resolved on the pleadings. They must be resolved on summary adjudication or trial. The demurrer is OVERRULED. Defendants have 30 days to answer.